



Appeal Decision

Site visit made on 11 August 2026

By Terrence Kemmann-Lane JP DipTP FRTPI MCMI

an Inspector appointed by the Secretary of State

Decision date: 24 August 2026

Appeal Ref: 6009270

Land adjacent to Village Hall, Clay Hill, Great Henny, Essex, CO10 7NL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr G Moore against the decision of Braintree District Council.
 - The application Ref is 25/02803/FUL.
 - The development proposed is proposed replacement outbuilding.
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Decision

1. The appeal is dismissed.

Main Issue

2. The main issue in this case is the suitability of the site for the proposed use.

Reasons

3. The appeal site is triangular in shape immediately adjacent to the Great Henny Parish Room on Clay Hill, near its junction with Church Lane. The site is largely untended grassland with a small, dilapidated touring caravan apparently discarded near the centre of the site. Clay Hill is designated as a protected lane under the name 'Gantry's Farm Road'. The site lies within the Stour Valley National Landscape Project Area and is within the setting of the Grade II Listed Thatched Cottage (List Entry No: 1123268), situated on the corner of Clay Hill and Church Lane. The southern site boundary has a mature hedge providing some screening.
4. The proposed pottery studio would be single-storey, finished with larch cladding set over a brick plinth and under a metal standing seam pitched roof, as stated in the application form, but is shown on the plans as being of natural slate. The building would provide a vaulted open environment for work benches, a kiln, potter's wheel, shelving, tool storage, clay bins, a painting and drying area, a sink and general storage for associated tools and equipment for the use of an amateur potter. The application plan has a note that shows the caravan being refurbished and re-sited, but this is not part of the description of the development.
5. Policy LPP1 of the adopted Local Plan states that development outside development boundaries will be confined to uses appropriate to the countryside whilst also protecting and enhancing valued landscapes, sites of biodiversity or geological value and soils to protect the intrinsic character and beauty of the countryside.

6. The site is indeed within the open and attractive countryside, and the proposed use is not related to an agricultural or other appropriate countryside use. No explanation is given as to the reason for siting the pottery studio in this location, although I note that the land is owned by the appellant. Again, there is no indication of where the appellant resides, but it would seem inevitable that access would be by a private motorised vehicle. Thus, the proposal is contrary to Policy LPP1, and would not amount to sustainable development.
7. In addition, the Essex County Council (ECC) Historic Buildings Consultant advises that the development would result in a low level of less than substantial harm to the nearby Grade II Listed Thatched Cottage. This objection is on the proposed building's size, height and massing and the use of inappropriate materials and contemporary fenestration. As paragraph 215 of the National Planning Policy Framework states: *"Where a development proposal will lead to less than substantial harm to the significance of a designated heritage asset, this harm should be weighed against the public benefits of the proposal including, where appropriate, securing its optimum viable use"*. In this case I cannot identify any public benefit.
8. I agree with the assessment of the ECC consultant and on the basis of the above, I find that the proposal is contrary to Policy LPP 1, and that it would result in less than substantial harm to the nearby listed building.
9. The appellant makes the point that it cannot be the case that a development plan can be expected to provide policies for each and every development proposal that will be submitted to that authority. That is a statement of the obvious, but provides no justification for a development that goes against explicit policy, would result in a low level of less than substantial harm to the nearby Grade II Listed Building, and would not amount to sustainable development.
10. The appellant also suggests that he could use the land for a whole range of purposes for up to 28 days per calendar year without permission; potentially sitting on the land and carrying out pottery in the open air; completely enclose the land with fencing or a brick wall (without permission); could utilise the land for a range of agricultural activities (without permission and generating as many car journeys as required) and use for recreational camping (again, without permission and generating as many car journeys as required). He contends that in that context the proposed use and building is vastly less intrusive than a range of uses that are already available to him. That may be so, although for the most part, these are rather fanciful.
11. Finally, the appellant seeks to rely on paragraph 11 c) or d) of the National Planning Policy Framework (NPPF). Sub-paragraph c) requires approval of a development that accords with an up-to-date development plan. In this case the proposal does not accord with such a plan. Sub-paragraph d) deals with the situation where there are no relevant development plan policies, or the policies which are most important for determining the application are out-of-date. In this case there is policy, Policy SP3 (Section 1) Policy LPP1 (Section 2), in plans that are up-to-date, or just over 5 years old but in accord with the NPPF and in particular, with paragraph 187 a) and b). There is also the weighty matter of less than substantial harm to a heritage asset (NPPF paragraphs 212 and 215).

12. As a result of these considerations, the appeal will be dismissed.

Terrence Kemmann-Lane

INSPECTOR